

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Jeffrey	Team: Squad #08	CCRB Case #: 202008025	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/01/2020 11:40 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 6/1/2022	Precinct: 121		
Date/Time CV Reported Tue, 12/08/2020 3:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 12/08/2020 3:14 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Dipaolo	4997	955886	121 PCT
2. SGT Olsen Hoxha	05542	949119	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Perfetto	03325	949473	121 PCT
2. SSA John Todaro	05234	903307	121 PCT
3. POM Nicholas Cavalotti	10540	960344	121 PCT
4. POM Francis Torres	12670	961383	121 PCT
5. POF Alexandra Florida	08608	956651	121 PCT
6. POM Jose Tabora	17232	943856	121 PCT
7. POM John Murphy	20986	944718	121 PCT
8. POM Edward Aswad	21351	951514	121 PCT
9. POM Michael Petrino	04818	964703	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Olsen Hoxha	Abuse: Sergeant Olsen Hoxha stopped the vehicle in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo stopped the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	B . Exonerated
C . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo searched § 87(2)(b)	C . Exonerated
D . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo searched § 87(2)(b)	D . Exonerated
E . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo searched § 87(2)(b)	E . Exonerated
F . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo searched the vehicle in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated
G . POM Joseph Dipaolo	Abuse: Police Officer Joseph Dipaolo threatened to arrest § 87(2)(b)	G . Unfounded

Case Summary

On December 08, 2020, § 87(2)(b) filed this complaint with the CCRB generating online correspondence #1-1-170453.

On December 01, 2020, at approximately 11:40 p.m., § 87(2)(b) was driving on § 87(2)(b) in Staten Island towards his house at § 87(2)(b) with his friend § 87(2)(b) in the front passenger seat and his younger brother § 87(2)(b) sitting in the back-passenger seat. When § 87(2)(b) approached the intersection of § 87(2)(b) and § 87(2)(b) Sgt. Olsen Hoxha and PO Joseph Dipaolo of the 121 Precinct pulled him over (**Allegations A and B: Abuse of Authority, exonerated**).

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were asked to exit the vehicle and were each searched by PO Dipaolo (**Allegations C, D, and E: Abuse of Authority, exonerated**). PO Dipaolo then searched the interior of § 87(2)(b)'s vehicle (**Allegation F: Abuse of Authority, exonerated**). While PO Dipaolo was searching § 87(2)(b)'s vehicle § 87(2)(b)'s mother § 87(2)(b) came outside. PO Dipaolo allegedly threatened to arrest § 87(2)(b) if she did not back away from him (**Allegation G: Abuse of Authority, unfounded**).

The investigation received BWC videos from all the officers involved in this incident (Board Review 01 - 03).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Olsen Hoxha stopped the vehicle in which

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Joseph Dipaolo stopped the vehicle in which

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Police Officer Joseph Dipaolo searched § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Joseph Dipaolo searched § 87(2)(b).

Allegation (E) Abuse of Authority: Police Officer Joseph Dipaolo searched § 87(2)(b).

Allegation (F) Abuse of Authority: Police Officer Joseph Dipaolo searched the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

According to § 87(2)(b) on December 01, 2020, approximately thirty minutes before being pulled over, § 87(2)(b) had been parked in his driveway at § 87(2)(b) in Staten Island (Board Review 04). § 87(2)(b) and § 87(2)(b) smoked marijuana while sitting in his car using rolling papers to make joints. The two men smoked for approximately ten to fifteen minutes with the car windows rolled up and then drove with § 87(2)(b) to pick up laundry at a nearby laundromat on § 87(2)(b).

On the way back from the laundromat § 87(2)(b) was driving slightly below the speed limit due to a curve in the road as he approached a stop sign at the intersection of § 87(2)(b) and § 87(2)(b). § 87(2)(b) stopped and noticed an unmarked black ford sedan speeding towards him. The car then activated siren lights prompting § 87(2)(b) to pull over. The unmarked ford then pulled over behind § 87(2)(b) and two officers, whom the investigation has identified as PO Dipaolo and Sgt. Hoxha, exited.

PO Dipaolo approached § 87(2)(b)'s door, § 87(2)(b) opened his door, because his window is broken and cannot be rolled down. PO Dipaolo told § 87(2)(b) that he could smell marijuana and

asked § 87(2)(b) to exit his vehicle. § 87(2)(b) called his mom, § 87(2)(b) since his home is located across the street from where he was pulled over. Before § 87(2)(b) could speak to § 87(2)(b) PO Dipaolo grabbed his phone and hung up. PO Dipaolo then told § 87(2)(b) to get out of the car.

PO Dipaolo began searching § 87(2)(b) PO Dipaolo patted down the outside of § 87(2)(b)'s clothing including around his shoulders, arms, torso, and pants. PO Dipaolo also checked inside of § 87(2)(b)'s pockets and had him spread his legs so he could shake his pants starting at his ankles moving upwards. While § 87(2)(b) was being searched, § 87(2)(b) came outside and asked why § 87(2)(b) had been pulled over. Sgt. Hoxha told § 87(2)(b) that one of § 87(2)(b)'s taillights were out and that was why he was pulled over. § 87(2)(b) could not recall if anything else was said between § 87(2)(b) and Sgt. Hoxha. § 87(2)(b) then called IAB. While on the phone with IAB, Sgt. Hoxha told § 87(2)(b) that they pulled § 87(2)(b) over because they had seen him smoking marijuana.

Once PO Dipaolo had finished searching § 87(2)(b) he was brought to the back of his vehicle next to the trunk where § 87(2)(b) and § 87(2)(b) were standing, having already been searched.

PO Dipaolo then searched § 87(2)(b)'s car. PO Dipaolo searched inside the glove compartment and the center console, as well as around the seats. PO Dipaolo did not search inside of § 87(2)(b)'s trunk. PO Dipaolo discovered a small amount of marijuana in the front passenger seat where § 87(2)(b) had been sitting. § 87(2)(b) claimed this marijuana as his. All the contents of the center console were taken out and not put back.

§ 87(2)(b) was eventually given a summons § 87(2)(b) (Board Review 23). § 87(2)(b) was arrested because he had a bench warrant § 87(2)(b)

§ 87(2)(b) was not interviewed as he failed to appear to his scheduled interview and never responded after the investigation exhausted contact attempts (Board Review 06-14)

§ 87(2)(b) told the CCRB that he was not interested in participating in this investigation and did not want to do an interview (Board Review 14).

During her interview with the CCRB, § 87(2)(b) stated that she was at her home at § 87(2)(b) in Staten Island when she received a phone call from her son § 87(2)(b) stating that he had been pulled over (Board Review 05). § 87(2)(b) had gone to pick up laundry with his younger brother § 87(2)(b) and his friend, whom § 87(2)(b) knows only as § 87(2)(b). § 87(2)(b) then heard the phone get taken away from § 87(2)(b) and someone say, "I said hang up the phone." The person then hung up on § 87(2)(b)

§ 87(2)(b) attempted to text and call her son but did not receive a response. § 87(2)(b) then texted § 87(2)(b) and stated that they had been pulled over in front of her house. § 87(2)(b) went outside and saw that § 87(2)(b) had been pulled over on § 87(2)(b) right next to the intersection with § 87(2)(b) opposite her house, near a fire hydrant. § 87(2)(b) saw two police vehicles and three officers. PO Dipaolo and an unidentified officer were searching § 87(2)(b)'s car. Sgt. Hoxha was standing next to one of the unmarked police cars watching. § 87(2)(b), § 87(2)(b), and § 87(2)(b) who were standing outside next to their car.

§ 87(2)(b) went inside and called 911. § 87(2)(b) told 911 that her sons and their friend were being harassed by the NYPD. She stated that they were being forced to stand outside in the cold with no coat on. 911 then connected with § 87(2)(b) with IAB. While on the phone with IAB § 87(2)(b) walked back outside.

Sgt. Hoxha saw § 87(2)(b) was on the phone with IAB and asked if he could speak to her. § 87(2)(b) asked Sgt. Hoxha why § 87(2)(b) had been pulled over. Sgt. Hoxha stated that they pulled § 87(2)(b) over because he was smoking marijuana. § 87(2)(b) asked Sgt. Hoxha if he had seen § 87(2)(b) smoking. Sgt. Hoxha stated that they had not seen the men smoking, but they had smelled the odor of marijuana. § 87(2)(b) asked what had led to § 87(2)(b) being pulled over in the first place. Sgt. Hoxha stated that when they saw § 87(2)(b) turning, they noticed that his car had a broken taillight. § 87(2)(b) told Sgt. Hoxha that was not a legitimate reason, because even though § 87(2)(b)'s taillight is damaged it still functions properly.

According to PO Dipaolo on December 01, 2020, he was driving an unmarked car with Sgt. Hoxha in the front passenger seat (Board Review 15). The officers were driving on § 87(2)(b) when they passed a vehicle moving in the opposite direction. The vehicles got within three feet of one another, PO Dipaolo's window was rolled down and the other vehicle's driver window was cracked. PO Dipaolo observed the driver, whom he later discovered to be § 87(2)(b) passing around what appeared to be a marijuana cigarette with the other occupants who were later discovered to be § 87(2)(b) and § 87(2)(b). PO Dipaolo believed the cigarette to be marijuana based on the smell, as well as the consistency of the smoke which he stated he could differentiate from cigarette smoke due to his experience. PO Dipaolo and Sgt. Hoxha conferred and confirmed that they both suspected the occupants of the other vehicle were smoking marijuana. The officers turned around engaged their lights and the vehicle pulled.

PO Dipaolo approached the driver side, § 87(2)(b) had opened the door and PO Dipaolo could smell the odor of marijuana. PO Dipaolo also observed lingering smoke through the rear passenger window. PO Dipaolo asked for license and registration. § 87(2)(b) stated that he did not have his license on him. PO Dipaolo asked him to step out of the vehicle and § 87(2)(b) got out. § 87(2)(b) told PO Dipaolo that he had smoked marijuana and that there was a little bit of marijuana in the car. PO Dipaolo searched § 87(2)(b)'s pockets and frisked around his arms legs and waist band and found a small cannister which contained marijuana.

Sgt. Hoxha had § 87(2)(b) and § 87(2)(b) exit from the passenger side of the vehicle and step to the back. § 87(2)(b) and § 87(2)(b) were searched by Sgt. Hoxha. Sgt. Hoxha also found marijuana in between § 87(2)(b)'s feet in the vehicle.

PO Dipaolo searched § 87(2)(b)'s vehicle. At some point § 87(2)(b) asked PO Dipaolo why the men had been pulled over and he told her that he smelled marijuana and saw them smoking in the car.

§ 87(2)(b) and § 87(2)(b) were given summonses § 87(2)(b). § 87(2)(b) was also arrested for a bench warrant.

PO Dipaolo was shown a clip from Sgt. Hoxha's BWC between 12:44 and 12:53 minutes in which Sgt. Hoxha asks, "the light wasn't working?" PO Dipaolo stated he did not know what this was in reference to and that he could not recall any of the lights being out on § 87(2)(b)'s car. PO Dipaolo stated that if one of the lights was out it could have contributed to the stop, however the main reason the men were pulled over was because they had been observed smoking what appeared to be marijuana.

During his interview with the CCRB, Sgt. Hoxha stated that he was riding in the front passenger seat of an unmarked vehicle, which was being driven by PO Dipaolo (Board Review 16). As the officers were travelling east down § 87(2)(b) they passed by another vehicle which was going in the opposite direction. The officers had their windows rolled down and the driver of the

other vehicle had his window cracked open.

Sgt. Hoxha saw the driver of the vehicle smoking what appeared to be a lit marijuana cigarette. Sgt. Hoxha stated that the cigarette appeared to be marijuana by the way the driver was holding it and because it was wrapped in rolling papers. Sgt. Hoxha and PO Dipaolo both confirmed with one another that they saw the driver smoking marijuana. Seconds later, the officers made a U-turn and pulled over the vehicle.

Sgt. Hoxha approached the passenger's door while PO Dipaolo approached the driver's door. Sgt. Hoxha smelled marijuana and observed marijuana at the feet of § 87(2)(b)

Sgt. Hoxha asked § 87(2)(b) if he had been smoking marijuana and for his identification. Sgt. Hoxha then had § 87(2)(b) step out of the car along with § 87(2)(b) who was sitting in the back of the car. PO Dipaolo asked § 87(2)(b) who was in the driver seat to also get out. The men were compliant with the officers' orders. PO Dipaolo searched the three men by patting around their torso and going into their pockets. PO Dipaolo found a cannister of marijuana on § 87(2)(b)

When reading his memo book entries Sgt. Hoxha was asked if there were any comments recorded and he stated that there were not. Sgt. Hoxha later stated that he did not recall anything about there being a broken taillight or license plate light on § 87(2)(b)'s vehicle, but that if there was it could have contributed to the stop.

§ 87(2)(a) 160.50

PO Dipaolo's BWC shows that between 01:42 and 02:44 minutes PO Dipaolo has all three men step out of the car and he searches them one by one (Board Review 01-03). In the video § 87(2)(b) states that there is nothing in his car except for marijuana. At 03:19 minutes § 87(2)(b) can be heard asking PO Dipaolo why the three men were pulled over. PO Dipaolo states that they were smoking weed in the car. PO Dipaolo walks over to the car and points his flashlight inside. § 87(2)(b) approaches PO Dipaolo from the front side of the car. § 87(2)(b) asks PO Dipaolo where they were smoking, PO Dipaolo responds that they were smoking while driving. At 03:39 minutes PO Dipaolo appears to be reaching into the car and then begins searching through the pockets of a jacket that was left on the front passenger seat. PO Dipaolo then searches the glove compartment, center console, and back seat.

In People v. Chestnut, 43 A.D. 2d 260 the court ruled that the smell of marijuana emanating from a defendant's vehicle with nothing more is sufficient to give officers probable cause to search a vehicle and its occupants (Board Review 18).

§ 87(2)(g)

It is therefore recommended that **Allegations A** through **F** be closed as **exonerated**.

Allegation (G) Abuse of Authority: Police Officer Joseph Dipaolo threatened to arrest § 87(2)(b)

In her interview with the CCRB § 87(2)(b) stated that when she approached § 87(2)(b)'s vehicle,

she noticed that § 87(2)(b), § 87(2)(b), and § 87(2)(b) were standing in the cold air without their jackets on (Board Review 05). § 87(2)(b) walked towards the vehicle, which PO Dipaolo and Sgt. Hoxha were in the process of searching, to get the three men jackets. When § 87(2)(b) approached PO Dipaolo asked § 87(2)(b) what she was doing. § 87(2)(b) explained that she wanted to get the three men their jackets. PO Dipaolo and the unidentified officer told § 87(2)(b) that she needed to get away from the car. § 87(2)(b) said that she was not going to get away from the car, because it was cold out, COVID-19 is happening, and the three men need their coats. Sgt. Hoxha argued back and forth with § 87(2)(b) and then said whatever and went back to searching the car. PO Dipaolo continued to argue with § 87(2)(b) and told her that she could not get the jackets and that she needed to back away from the car or else she would be arrested.

§ 87(2)(b) told the officers that she was going to go inside and call 911, because what the officers were doing was wrong and she was going to get them to give the men their jackets. PO Dipaolo told § 87(2)(b) to go ahead and stated that she was not going to be able to get him to do anything.

In his interview with the CCRB PO Dipaolo stated that after he had searched the driver side of § 87(2)(b)'s vehicle, he began walking around to search the passenger side when § 87(2)(b) came out of her house and began yelling at him (Board Review 15). PO Dipaolo asked § 87(2)(b) to back up and to stand on the sidewalk. § 87(2)(b) did not comply with the order and continued to yell at him. PO Dipaolo did not recall ever threatening to arrest § 87(2)(b) and did not know if any other officer had threatened to arrest her. § 87(2)(b) never stepped onto the sidewalk, but after PO Dipaolo told her again to back up again, she walked to the other side of the vehicle and called IAB.

According to Sgt. Hoxha, he asked § 87(2)(b) to step on the sidewalk, which she did before calling IAB. Neither Sgt. Hoxha nor any of the officers threatened to arrest § 87(2)(b) (Board Review 16).

Sgt. Hoxha's BWC shows that at t 03:20 minutes § 87(2)(b) can be heard out of view of the BWC. Sgt. Hoxha asks her to give the officers one minute (Board Review 01-03). § 87(2)(b) then walks towards Sgt. Hoxha from the direction of the front of the car. Sgt. Hoxha asks her to give them a moment and then he will speak to her and tell her everything. § 87(2)(b) says okay and then walks and stands approximately two feet from PO Diapolo who appears to be searching the car. Sgt. Hoxha tells § 87(2)(b) not to stand next to the officer. § 87(2)(b) argues with Sgt. Hoxha and then agrees to back up and distances herself by approximately one extra foot. PO Diapolo can be heard arguing with § 87(2)(b) although what they are saying is difficult to discern. § 87(2)(b) then states she is going to call internal affairs and tells § 87(2)(b) she is going to use his phone. § 87(2)(b) then walks and takes § 87(2)(b)'s phone from on top of the car's trunk and she stands approximately six feet from the passenger side of the car and calls IAB.

PO Dipaolo's BWC video shows that at 04:00 minutes § 87(2)(b) approaches PO Diapolo and states that this is her son's car and that he went to go get laundry (Board Review 01-03). PO Diapolo says okay and asks her to stand on the corner. § 87(2)(b) states that she is going to stand right where she is. PO Diapolo tells § 87(2)(b) again to stand on the corner. § 87(2)(b) repeats that she will stand where she is. PO Diapolo tells § 87(2)(b) to stand on the corner. § 87(2)(b) says no, and that PO Diapolo will not talk to her like that. § 87(2)(b) then states that she is going to call internal affairs and PO Diapolo says that is fine. PO Diapolo then searches in the car's glove compartment. § 87(2)(b) begins walking towards her house then turns around and stands approximately six feet from the passenger side of § 87(2)(b)'s vehicle and appears to call IAB on her cellphone.

The BWC video received by the investigation shows the entirety of § 87(2)(b)'s interaction with the officers before she calls IAB (Board Review 01-03). None of the video captures § 87(2)(b) being told she will be arrested.

§ 87(2)(g)

, it is recommended that **Allegation G** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two other CCRB complaints and has been named as a victim in two of the allegations (Board Review 19):
 - § 87(2)(b)
 -
- § 87(2)(b) been party to four other CCRB complaints and has been named as a victim in nine of the allegations (Board Review 19):
 - § 87(2)(b)
 -
 -
 -
 -
- § 87(2)(b) § 87(2)(b) been party to three other CCRB complaints and has been named as a victim in five of the allegations (Board Review 19):
 - § 87(2)(b)
 -
 -
 -
- § 87(2)(b) has been party to one other CCRB complaints and has been named as a victim in none of the allegations (Board Review 19):
 - § 87(2)(b)

